

**BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION,
GHAZIABAD (U.P.)**

CONSUMER COMPLAINT NO. _____ OF 2026

(Complaint under Section 35 of the Consumer Protection Act, 2019)

IN THE MATTER OF:

Vikas Gandhi ...Complainant

VERSUS

ACKO General Insurance Limited ...Opposite Party

SYNOPSIS

1. That the Complainant holds the Opposite Party's Personal Health Policy No. ASHP202400001607 (sum insured Rs. 10,00,000). In June 2025, more than seven months after the policy commenced, he developed acute obstruction in passing urine along with infection, and underwent an urgent Circumcision and Meatoplasty at RS Maitri Health Care, Ghaziabad on 20.06.2025, the very day of admission, performed by a specialist Urologist. The total hospital expense was Rs. 37,358.
2. That the Opposite Party repudiated Claim No. 25062100350/1 on 26.06.2025 citing only the general 2-year "Specific Illnesses" waiting-period clause. It did not name any listed condition, did not obtain any medical opinion, and did not deal with the exception contained in its own clause, namely "Any Surgery of the genitourinary system unless necessitated by malignancy." A day earlier, on 25.06.2025, it had already stated that the procedure "is not related to a malignancy", that is, five days before the histopathology report came into existence.
3. That the biopsy dated 30.06.2025 confirmed Balanitis Xerotica Obliterans (Lichen Sclerosus), a medically recognised pre-malignant condition, on a suspicious "cauliflower like lesion". The treating Urologist, Dr. Vaibhav Saxena, M.Ch. (AIIMS), has certified that the surgery "was must", that BXO is "a pre-malignant condition", and that without treatment there was a risk of life-threatening infection and penile cancer. The Opposite Party has not produced any contrary medical opinion.
4. That the Insurance Ombudsman, Noida, by Award dated 02.07.2026, dismissed the complaint in summary proceedings but recorded that the medical necessity of the procedure is undisputed and that the Permanent Exclusion clause is inapplicable, and granted liberty to approach any other forum. The only question that now remains is whether surgery for a biopsy-confirmed pre-malignant condition falls within the exception "unless necessitated by malignancy". The evidentiary gap noted by the Ombudsman no longer exists, as the treating specialist's certificate and standard medical literature are now on record.
5. That the repudiation, being unreasoned and contrary to the insurer's own clause and record, amounts to deficiency in service under Section 2(11) and to unfair trade practice under Section 2(47) of the Consumer

Protection Act, 2019. The Complainant seeks Rs. 37,358 with interest at 12% per annum from 26.06.2025, Rs. 1,00,000 as compensation for mental agony and harassment, and Rs. 25,000 towards costs.

LIST OF DATES AND EVENTS

Date	Event	Annexure
04.11.2024	ACKO Personal Health Policy (Standard Plan, Family Floater) No. ASHP202400001607 issued after underwriting; Sum Insured Rs. 10,00,000; premium Rs. 31,065 p.a.; period 04.11.2024 to 03.11.2025. Proposal Form records “No medical conditions”; only PED declared, Obesity. Policy Schedule records “Permanent disease exclusion: No exclusion”.	C-1, C-2
Nov 2024 to Jun 2025	All premium instalments paid on time; policy continuously in force.	C-3
20.06.2025	Complainant admitted to RS Maitri Health Care, Ghaziabad at 06:58 hrs with acute urinary obstruction (“POOR FLOW OF URINE”) and infection; Circumcision and Meatoplasty performed the same day under spinal anaesthesia by Dr. Vaibhav Saxena, M.Ch. (Urology); IV fluids and IV antibiotics administered; excised tissue sent for histopathology.	C-4
21.06.2025	Discharged in stable condition; total hospital expenses Rs. 37,358, paid by the Complainant. Reimbursement Claim No. 25062100350/1 lodged.	C-4, C-5, C-6
24.06.2025	Detailed representation and grievance sent to the Opposite Party (Ticket 12568674).	C-6
25.06.2025	“Update on Your Claim” e-mail rejects the claim, asserting that the procedure “is not related to a malignancy”, five days before the histopathology report existed; the GRO rejects the representation in the same terms.	C-7
26.06.2025	Claim formally repudiated citing only the general “Specific Illnesses” 2-year waiting-period clause, without naming any listed condition and without dealing with the exception “unless necessitated by malignancy” contained in it.	C-8
30.06.2025	Histopathology Report, Max Lab, No. V-6630/25: gross “cauliflower like lesion 3.5 x 3 x 0.8 cm”; Impression: “Consistent with Lichen sclerosus (balanitis xerotica obliterans)”, a recognised pre-malignant condition.	C-9
Jul to Aug 2025	Appeals and grievances to the Opposite Party (Tickets 12582411, 12582412), all rejected without dealing with the medical evidence.	C-10 (colly.)
07.08.2025	Complaint filed before the Insurance Ombudsman, Noida (NOI-H-056-2526-0961).	C-11
30.08.2025	Opposite Party itself renews the policy as No. ASHP202400001607R1 (04.11.2025 to 03.11.2026; Sum Insured Rs. 11,00,000), recording “First policy inception date: 04/11/2024”.	C-1 (colly.)
24.06.2026	Personal hearing before the Insurance Ombudsman.	C-11
02.07.2026	Ombudsman Award IO/NOI/A/HI/0061/2026-2027: complaint dismissed, but paras 13 and 14 hold medical necessity undisputed and the Permanent Exclusion inapplicable; the forwarding letter grants liberty to approach any other forum.	C-11
12.07.2026	Treating Urologist’s Medical Certificate: surgery “was must” in view of inability to pass urine and UTI; biopsy confirmed BXO, “a pre-malignant condition”; risk of life-threatening infection and penile cancer if not treated.	C-12
14.07.2026	Grievance registered on the National Consumer Helpline (INGRAM) portal, Grievance No. 9719631 (in process).	C-10 (colly.)
15.07.2026	Opposite Party’s GRO replies, reiterating the “waiting period” ground of 26.06.2025 without adverting to the biopsy report, the treating doctor’s certificate, or the Ombudsman’s findings.	C-10 (colly.)
____.____.2026	Present complaint filed before this Hon’ble Commission.	—

Place: Ghaziabad

Date: ____ July 2026

COMPLAINANT

(Vikas Gandhi)